

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1086
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 29, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-2905.05, to read:

4 36-2905.05. Contractors; reimbursement; noncontracting
5 providers; prohibitions

6 [A. NOTWITHSTANDING ANY OTHER LAW TO THE CONTRARY:]

7 [A.] [1.] A CONTRACTOR SHALL REIMBURSE A NONCONTRACTING PROVIDER
8 FOR LABORATORY SERVICES RENDERED TO A MEMBER WHO IS ENROLLED WITH THE
9 CONTRACTOR IF THE MEMBER WAS REFERRED BY A CONTRACTED PROVIDER [OF THE
10 CONTRACTOR AT A RATE THAT IS NOT MORE THAN THE RATE THAT WOULD BE
11 REIMBURSED TO A CONTRACTING PROVIDER].

12 [B.] [2.] A CONTRACTOR MAY NOT REQUIRE PRIOR AUTHORIZATION FOR
13 DIAGNOSTIC SERVICES.

14 [C.] [B.] A CONTRACTOR MAY NOT TAKE OR THREATEN TO TAKE
15 RETALIATORY ACTION AGAINST A CONTRACTED PROVIDER FOR REFERRING A MEMBER TO
16 A NONCONTRACTED PROVIDER.

1 Sec. 2. Legislative intent

2 The legislature intends to promote cost controls through competition
3 and to avoid monopolistic practices that interfere with the free market.
4 Adequate oversight through rigorous audit practices is the alternative.

5 Enroll and engross to conform

6 Amend title to conform

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